

		plaintiff to interplead the funds. (Hood v. Gonzales (2019) 43 Cal.App.5th 57, 71.) In the second phase, the trial court has the power to adjudicate the issues raised by the interpleader, including the disposition of the interpleaded funds. (Id. at p. 72.) Wells Fargo filed this action for interpleader on March 7, 2023, and after deducting its attorney fees and costs, interpleaded with the Court funds in the amount of \$24,034.65. Defendant filed a Cross-Complaint against Thru Trading for financial elder abuse, fraud, money had and received, conversion, and unjust enrichment and has obtained judgment in her favor thereon in the amount of \$54,907.20, exclusive of recoverable costs. The judgment in Defendant's favor exceeds the total amount of the interpleaded funds. Thus, the Court finds that Defendant has established a right to the interpleaded funds in their entirety. Accordingly, the Motion is GRANTED. Defendant to give notice.
109	City of Westminster vs. West 24-01443472	1. Motion to Compel Answers to Form Interrogatories 2. Motion to Compel Production 3. Motion to Deem Facts Admitted Motion to Compel Further Response to Form Interrogatory Plaintiff, City of Westminster (the "City"), moves for an order compelling Defendant, Amy Phan West ("Defendant"), to provide a further verified supplemental response to the City's Form Interrogatory No. 15.1, and awarding monetary sanctions in the amount of \$4,350 against Defendant and/or her counsel of record. No opposition has been filed.

	With respect to the timing requirement, Code of Civil Procedure section 2030.300, subdivision (c), specifically provides: “Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing, the propounding party waives any right to compel a further response to the interrogatories.” The 45-day time limit is extended for service by mail, overnight delivery, or fax, or electronic mail in accordance with Code of Civil Procedure sections 1010.6(a)(3), 1013. Here, Defendant served the subject verified supplemental response on January 26, 2026. (ROA 90, Declaration of Ajit S. Thind (“Thind Decl.”), ¶ 7, Ex. E.) The instant motion was filed on March 4, 2026, and was timely filed within 45 days. A motion to compel further responses to interrogatories must be accompanied by a meet and confer declaration under Code of Civil Procedure section 2016.040. (Code Civ. Proc. § 2030.300(b).) The City has made adequate good faith efforts to meet and confer prior to filing this motion. (Thind Decl., ¶¶ 5-9, Exs. D-G.) Code of Civil Procedure section 2030.300(a) provides that a party propounding discovery may move for an order compelling a further response if an answer to a particular interrogatory is evasive or incomplete, or an exercise of the option to produce documents under Code Civ. Proc. section 2030.230 is unwarranted or the required specification of those documents is inadequate, or an objection to an interrogatory is without merit or too general. The motion must be accompanied by a meet and confer declaration under Code. Civ. Proc. Section 2016.040. (Code Civ. Proc. § 2030.300(b).) Each answer in a response to interrogatories shall be as complete and straightforward as the information
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	reasonably available to the responding party permits. (Code Civ. Proc. § 2030.220(a).) If an interrogatory cannot be answered completely, it shall be answered to the extent possible. (Code Civ. Proc. § 2030.220(b).) Defendant’s verified supplemental response dated January 23, 2026, is not complete and straightforward as it does not identify each of Defendant’s 17 affirmative defenses alleged in Defendant’s Answer. The response does not state all facts upon which Defendant bases each denial or special or affirmative defense, does not state the names, address, and telephone numbers of all persons who have knowledge of those facts for each denial or special or affirmative defense, and does not identify all documents and other tangible things that support Defendant’s denial or special or affirmative defense and does not state the name, address, and telephone number of the person who has each document. (Exs. E and H to Thind Decl.) Thus, the Court GRANTS the motion to compel a further verified response. Defendant to serve a further verified response to Form Interrogatory, No. 15.1, within 30 days. The City requests a monetary sanction in the amount of \$4,350 against Defendant and/or her counsel. Code of Civil Procedure section 2030.300(d) provides: “The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” \$4,350 consists of six (6) hours for the moving papers and anticipated four (4) hours for the opposition, reply, and attending the hearing, at \$435 per hour. (Thind Decl., ¶¶ 12-14.) There are no opposition and no need
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for a reply. In light of the ruling on the motion, the Court GRANTS a reduced monetary sanction in the amount of \$1,305 against Defendant, to be paid within 30 days. Three (3) hours to draft the moving papers and appear at the hearing are reasonable. There is no showing that Defendant acted with substantial justification or the other circumstances would render the imposition of the sanction unjust. To the extent that the City seeks monetary sanctions against Defendant's counsel, insufficient notice is given. The individual or party against whom the sanctions are sought must be identified in the notice of motion and supported by evidence. (Weinstein v. Blumberg (2018) 25 Cal.App.5th 316, 321; Corralejo v. Quiroga (1984) 152 Cal.App.3d 871, 874 [order imposing sanctions on attorney reversed where notice of motion did not clearly provide that sanctions were being sought against attorney].)

Motion to Compel Compliance

Plaintiff, City of Westminster (the "City"), moves for an order compelling Defendant, Amy Phan West ("Defendant"), to comply with her Third Supplemental Response to the City's Request for Production ("RFP") No. 1, and awarding monetary sanctions in the amount of \$3,480 against Defendant.

No opposition has been filed.

Code of Civil Procedure section 2031.320(a) provides that a party may move for an order compelling compliance if a party serving a response to an inspection demand thereafter fails to permit inspection in accordance with that party's statement of compliance.

Here, the City's counsel provides that Requests for Production of Documents ("RFP"), Set One was served on September 17, 2025, and that on March 16, 2026, Defendant served third supplemental verified responses to the RFP which identified two records, WEST

	1000075783 and WEST 1000077132, which were not produced. (ROA 111, Declaration of Ajit S. Thind (“Thind Decl.”), ¶¶ 2, 8-13, Exs. A, F-G.) Based on the foregoing, the Court GRANTS the City’s motion to compel compliance. Defendant to produce WEST 1000075783 and WEST 1000077132 within 30 days. The City requests sanctions in the amount of \$3,480 against Defendant. “[T]he court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel compliance with a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc. § 2031.320(b).) “The purpose and effect of sections 2031.030(a) and 2031.320(b) is not to punish but to compensate a litigant for costs that litigant incurred as a result of another litigant’s misuse of the discovery process.” (Baer v. Tedder (2025) 115 Cal.App.5th 1139, 1151.) \$3,480 consists of five (5) hours on this motion and an anticipated three (3) hours to review the opposition, prepare a reply brief and attend the hearing at \$435 per hour. (Thind Decl., ¶¶ 14-16.) In light of the ruling on the motion, the Court GRANTS a reduced monetary sanction in the amount of \$1,305 against Defendant, to be paid within 30 days. Three (3) hours to draft the moving papers and appear at the hearing are reasonable. There is no showing that Defendant acted with substantial justification or the other circumstances would render the imposition of the sanction unjust. Motion to Deem Requests for Admission, Set Two, Admitted
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		Plaintiff, City of Westminster (the “City”), moves for an order deeming the truth of all matters specified in Requests for Admission, Set Two, served on Defendant Amy Phan West (“Defendant”) on April 30, 2026, and awarding monetary sanctions in the amount of \$2,175 against Defendant. No opposition has been filed. Code of Civil Procedure section 2033.280 provides that if a party to whom requests for admission are directed fails to serve a timely response, the party waives any objection to the requests. The requesting party may also move for an order that the genuineness of documents and the truth of any matters specified in the requests be deemed admitted. (Code Civ. Proc. § 2033.280(a)-(b).) The court shall deem the matters admitted “unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220.” (Code Civ. Proc. § 2033.280(c).) Here, on April 30, 2026, the City’s counsel served the City Requests for Admission, Set Two, on Defendant, by e-mail and U.S. Mail. (ROA 142, Declaration of Ajit S. Thind (“Thind Decl.”), ¶¶ 3-4, Exs. A-B.) Defendant’s new counsel, Zachary McCready, filed a Substitution of Attorney form on May 4, 2026, and on May 9, 2026, a courtesy copy of this discovery was served on Defendant’s new counsel. (Thind Decl., ¶ 5, Ex. C.) Defendant’s deadline to respond was June 2, 2026, and no response has been received from Defendant or her counsel, despite emails to Defendant’s new counsel inquiring about the Requests for Admission, Set Two. (Thind Decl., ¶¶ 6-7, Ex. D.) As a result of defendant’s failure to serve responses to the requests, defendant has “waive[d] any objection to the requests, including one based on privilege or on the protection for work product . . .” (Code Civ. Proc. § 2033.280(a).) The Court GRANTS the City’s motion to
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		deem Requests for Admission, Set Two, admitted as against Defendant. The City requests a monetary sanction in the amount of \$2,175, which consists of three (3) hours to draft the moving papers, and an anticipated two (2) hours to review the opposition, prepare a reply, and attend the hearing, at \$435 per hour. (Thind Decl., ¶¶ 9-11.) Pursuant to Code of Civil Procedure section 2033.280(c), “[i]t is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated [the] motion.” Because Defendant’s failure to serve a response to the City’s Requests for Admission, Set Two, necessitated the filing of the instant motion, the Court GRANTS a reduced monetary sanction in the amount of \$870 against Defendant, to be paid within 30 days. Two (2) hours to draft the moving papers and appear at the hearing are reasonable. To the extent that the City seeks monetary sanctions against Defendant’s counsel, no such request is made in the notice of motion. The City to give notice.
110	American Express National Bank vs. Nasif 25-01471543	Motion for New Trial x 2 Defendants Mahir Nasif and Mega World Builder Corp. (collectively, “Defendants”) move for new trial of the court’s order granting Plaintiff, American Express National Bank’s motion for summary judgment. The Motion for New Trial is DENIED. “The right to a new trial is purely statutory, and a motion for a new trial can be granted only on one of the grounds enumerated in the statute. [Citation.]” (Fomco, Inc. v. Joe Maggio, Inc. (1961) 55 Cal.2d 162, 166.)